

ASCII MASTER FLOW – PANEL 1/12: Federal root and analytical axes

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CENTRAL QUESTION: HOW CAN INDIA COMBINE NATIONAL CAPACITY WITH PROTECTED STATE AUTONOMY?



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ASCII MASTER FLOW – PANEL 2/12: Origin, holding-together choice and adaptation

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1919: provincial dyarchy; no federation

- > 1935: proposed All-India Federation + autonomy + three Lists + Federal Court
- > federation did not operate
- > 1946-49: Constituent Assembly chooses strong Union after Partition/integration
- > 26 JAN 1950: Union of States under one supreme Constitution
- > 1953-56: linguistic reorganisation + States Reorganisation Act + 7th Amendment
- > 1990: Inter-State Council | 1992-93: local bodies constitutionalised
- > 1994: S.R. BOMMAI protects federalism | 2016: 101st Amendment creates GST

CONTROL: colonial antecedent explains architecture; democratic Constitution supplies legitimacy.

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ASCII MASTER FLOW – PANEL 3/12: Federal features versus centralising adaptation

FEDERAL CORE

dual polity
written + supreme Constitution
Seventh Schedule division
Article 368 State ratification
independent judicial review
Rajya Sabha State representation

UNION-WEIGHTED ADAPTATION

Article 3 territorial power
Article 248 + Entry 97 residue
Articles 249/250/252/253 gateways
single citizenship + one Constitution
integrated courts, CAG, ECI and services
Governors + emergency provisions



VERDICT: constitutionally federal; asymmetrical; strong-Union, not unitary

TRAP: Rajya Sabha represents States but does not represent every State equally.

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ASCII MASTER FLOW – PANEL 4/12: Legislative allocation and conflict sequence

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ARTICLE 245: territorial reach

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ARTICLE 246 + SEVENTH SCHEDULE

+-- List I: Parliament

+-- List II: States, subject to constitutional exceptions

+-- List III: both levels

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+-- Article 246A: special GST competence

+-- Article 248 + Entry 97: residue to Parliament

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OVERLAP METHOD

pith and substance -> harmonious construction -> colourable legislation / nexus

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ARTICLE 254: irreconcilable Concurrent conflict; assent exception; later Union override

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ASCII MASTER FLOW – PANEL 5/12: Constitutional gateways into the State field

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NORMAL RULE: LIST II BELONGS TO STATES

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+-- 249: Rajya Sabha; 2/3 present and voting; national interest

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resolution up to one year; renewable; law survives six months

+-- 250: Article 352 National Emergency; law survives six months

+-- 252: two or more State resolutions; other States may adopt

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only Parliament can amend or repeal the parliamentary law

+-- 253: treaty / convention / international decision implementation

+-- 356-357: State constitutional breakdown; parliamentary power; BOMMAI review

TRAP: these are distinct doors, not one undefined national-interest power.

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ASCII MASTER FLOW – PANEL 6/12: Executive, administrative and intergovernmental process

IMPLEMENTATION RELATION

- +-- Articles 256-257: compliance + non-impediment directions
- +-- directions remain text-bounded; no general Union takeover
- +-- Articles 258 / 258A: consensual entrustment in either direction
- +-- Article 312: All-India Service after Rajya Sabha federal trigger

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CONSULTATION RELATION

- +-- Article 263: inquiry + discussion + recommendation
- +-- Inter-State Council != court != legislature

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HEALTHY EXECUTIVE FEDERALISM = legal basis + participation + reasons + accountability

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ASCII MASTER FLOW – PANEL 7/12: Fiscal capacity and GST shared rule

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RESPONSIBILITIES REQUIRE RESOURCES

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- +-- VERTICAL IMBALANCE: revenue/expenditure mismatch between Union and States
- +-- HORIZONTAL IMBALANCE: unequal capacity and need among States
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- +-- Articles 268-270 / 269A: levy, collection, assignment, apportionment
- +-- Articles 275 and 282: distinct grant routes
- +-- Articles 280-281: periodic Finance Commission recommendations
- +-- Article 293: conditional Union consent to specified State borrowing
- |
- +-- 101st Amendment, 2016 -> 246A + 269A + 279A
- MOHIT MINERALS, 2022 -> GST Council recommendations are not binding

CURRENT: 16th FC report for 2026-31 submitted 17 Nov 2025; 41% is a dated recommendation.

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ASCII MASTER FLOW – PANEL 8/12: Judicial doctrine and the federal floor

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STATE OF WEST BENGAL, 1963 -> States lack sovereign-compact immunity

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KESAVANANDA BHARATI, 1973 -> amendment power cannot damage Basic Structure

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STATE OF RAJASTHAN, 1977 -> cautious pre-Bommai review of Article 356 context

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S.R. BOMMAI, 1994 -> federalism Basic Structure + Article 356 review + floor test

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KULDIP NAYAR, 2006 -> domicile/equal-seat template not indispensable

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MOHIT MINERALS, 2022 -> GST recommendations non-binding

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2024 WEST BENGAL RULING -> Article 131 suit survived preliminary objection;
CBI-consent merits were not finally decided

COURTS PROTECT A MINIMUM; THEY DO NOT REPLACE DAILY INTERGOVERNMENTAL BARGAINING.

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ASCII MASTER FLOW – PANEL 9/12: Asymmetry, Delhi and Jammu and Kashmir

ASYMMETRY = DIFFERENTIATED GOVERNANCE WITHIN ONE CITIZENSHIP

- +-- Fifth Schedule: Scheduled Areas + Governor / Tribes Advisory Council
- +-- Sixth Schedule: autonomous councils in specified areas of four States
- +-- Articles 371-371J: distinct State-specific arrangements
- +-- Article 239AA: Delhi legislature/ministry; public order, police, land excluded
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- +-- NCT DELHI, 2018 / 2023: representative government within special UT design
- +-- later 2023 legislation means the services judgment alone is not current law
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- +-- ARTICLE 370 JUDGMENT, 11 DEC 2023
upheld 2019 changes | accepted Ladakh UT | no statehood-restoration date fixed

TRAP: asymmetry is differentiated authority, not unequal Indian citizenship.

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ASCII MASTER FLOW – PANEL 10/12: Territorial, functional and multi-level governance

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TERRITORIAL FEDERALISM

who governs which field/territory?

Articles 1 and 3 + Seventh Schedule

FUNCTIONAL FEDERALISM

who must cooperate for the task?

GST, health, disasters, infrastructure

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+-----+
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MULTI-LEVEL GOVERNANCE

Union <-> State <-> local institutions

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Parts IX / IXA recognise local bodies; Articles 243G / 243W
depend on State legislation for actual functions and authority

CONTROL: local bodies are a third governance tier, not co-sovereign federal units.

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ASCII MASTER FLOW – PANEL 11/12: Challenges, reforms and answer architecture

CHALLENGE	MECHANISM OF STRAIN	REFORM
Governor friction	delay / parallel discretion	prompt reasons + neutrality
fiscal centralisation	cesses / schemes / borrowing	transparency + predictability
GST disagreement	common market vs policy space	reasoned Council negotiation
inter-State disputes	durable externalities	adjudication + implementation
regional representation	competing fairness principles	broad consultation
Article 356 misuse	elected government displaced	BOMMAI + floor test + last resort
weak local devolution	distant service decisions	functions + funds + staff
irregular consultation	executive centralisation	regular Article 263 process

ANSWER METHOD: claim -> named Article/case -> mechanism -> counterpoint -> precise reform.

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ASCII MASTER FLOW – PANEL 12/12: Integrated revision spine and qualified conclusion

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DEFINE -> constitutional self-rule + shared rule
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TRACE -> 1919 / 1935 / Constituent Assembly / 1950 / 1956 / 1994 / 2016
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PROVE -> dual polity + supreme text + Lists + rigidity + courts + Rajya Sabha
|
QUALIFY -> Article 3 + residue + State-field doors + integrated machinery + emergency
|
OPERATE -> administration + finance + GST + councils + parties + adjudication
|
ACCOMMODATE -> Fifth/Sixth Schedules + 371 family + 239AA + bounded J&K status
|
EVALUATE -> Governor + fiscal space + disputes + representation + local devolution
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CONCLUDE -> constitutionally federal, Union-weighted and asymmetrical;
            cooperation gives capacity, restraint gives legitimacy.
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